

particular estate by way of vested interest with the power under the Statute of Uses or by a common law authority of passing the fee, but they retain the legal fee simple given to them in the first instance, on the footing that they were meant to exercise the discretion given to them by virtue of their *ownership* and not by the mere operation of a *power* (a). Baron Parke observed, in the leading case (b), "When an estate is given to trustees, all the trusts must *primâ facie* at least be performed by them by virtue and in respect of the estate vested in them. — The fee is in terms devised to them, and it would be a very strained and artificial construction to hold first that the natural meaning of the words is to be cut down, because they would give an estate more extensive than the trust required, and then when the trust does require the whole fee simple, to hold that that must be supplied by way of *power* defeating the estate to the subsequent devisees, and not out of the *interest* of the trustees."

5. **Devise to uses.** — The rule of construction laid down in this case has since been followed, even where the language of the subsequent limitations has been peculiarly applicable to a devise of the legal estate, as where after the primary devise to the trustees and their heirs upon limited trusts with discretionary powers the estate was expressed to be limited in strict settlement, by a declaration of *uses* to that effect (c).

6. **Where the powers do not effect the fee.** — But where the devise, before the late Wills Act, was to trustees and their heirs upon trust for a person for life, and after her death upon certain trusts during the minority of her children, followed by a direct devise to the children on the youngest attaining 21, without words of limitation (and therefore

(a) *Watson v. Pearson*, 2 Exch. 581; *Blagrove v. Blagrove*, 4 Exch. 550; *Davies v. Davies*, 1 Q. B. 430; *Doe v. Cadogan*, 7 Ad. & Ell. 636; *Rackham v. Siddall*, 1 Mac. & G. 607; *Poad v. Watson*, 6 Ell. & Bl. 606; and see *Watkins v. Frederick*, 11 H. L. Cas. 358.

(b) *Watson v. Pearson*, 2 Exch. 593.

(c) *Blagrove v. Blagrove*, 4 Exch. 550; *Rackham v. Siddall*, 1 Mac. & G. 607; [and see *Berry v. Berry*, 7 Ch. D. 657.]